



Notification Waiver Determination

Oaktree – Vivax

Acquisition	Vector JV Bidco, Inc, a special purpose vehicle controlled by Oaktree Capital Holdings, LLC (Oaktree), applied for a notification waiver in respect of its proposed: ▪ acquisition of 100% of the share capital in in each of VXMT Corporation, Vivax (Asia) Ltd, Metrotech Vertriebs GmbH, Vivax Metrotech Sdn. Bhd., Vivax-Metrotech Ltd. and Vivax-Metrotech SAS (together, Vivax); and ▪ grant to AMI Holding GmbH, the vendor, of a 40% indirect equity participation in Vector JV Bidco through the vendor's investment in Vector JV Topco, Inc, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	6 July 2026

Parties to the Acquisition	Oaktree is indirectly jointly controlled by Oaktree Capital Group Holdings GP, LLC; and Brookfield Corporation (together with its subsidiaries, Brookfield Group). Oaktree is a global investment manager headquartered in Los Angeles, USA, specialising in alternative investments. Oaktree pursues an opportunistic, value-oriented and risk-controlled approach to investments in distressed debt, high yield bonds, convertible securities, senior loans, corporate control, real estate, emerging market equities and mezzanine finance. Oaktree has investments in a range of companies in Australia including IT businesses and health and wellness food manufacturing, among others. Brookfield Group is a global investment firm that deploys pools of discretionary capital for investors across its core businesses, including its asset management business and its operating businesses focused on renewable power and transition, infrastructure, private equity, and real estate. Brookfield Group is a public company, co-listed on the New York Stock Exchange and the Toronto Stock Exchange. Brookfield Group has investments in Australia across a range of sectors, including infrastructure and energy. Brookfield Group is in the process of acquiring the remaining interest in Oaktree.
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	Vivax is a global surveying instrument manufacturer. Its products are used for locating and mapping buried utilities and inspecting the interior of pipes and ducts. In Australia, Vivax predominantly supplies precision pipes and cable locating equipment and related accessories through an independent third-party distributor. Vivax also provide full calibration of their pipe and cable locaters in Australia. AMI Holding GmbH is the current Germany-based holding company for Vivax.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there are no material competitive overlaps between Oaktree, Brookfield Group and Vivax in the supply of utility services, and surveying instruments, particularly underground utility detection equipment in Australia - there are alternative suppliers of surveying instruments, including underground utility detection equipment in Australia. The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act